

26STCV00311 26STCV00311

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-09-18

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Case Number: 26STCV00311 Hearing Date: September 18, 2026 Dept: 732

Superior Court of California

County of Los Angeles

Department 732

TEMINA WHITE.,

Plaintiff,

HQ L.A., INC., et al.,

Defendants.

Case No.: 26STCV00311

Hearing Date: September 18, 2026

[TENTATIVE] RULING RE:

Bryan Kristina Kourasis and Michelle N. Gubik's Motion to be Relieved as Counsel for Defendant HQ L.A., Inc. .,

Code of Civil Procedure § 284 states that “[t]he attorney in an action or special proceeding may be changed at any time before or after judgment or final determination” upon either consent of both client and attorney, or “[u]pon order of the court, upon the application of either client or attorney, after notice from one to the other..” (Code Civ. Proc. § 284, subd. (b).) California Rule of Court (“CRC”) Rule 3.1362 states the requirements for a motion to be relieved as counsel under Code of Civil Procedure § 284. No memorandum is required (CRC Rule 3.1362, subd. (b)), but the motion must be accompanied by (1) a declaration stating why a motion has been brought instead of filing a consent (without compromising attorney-client confidentiality) (CRC Rule 3.1362, subd. (c)); (2) proof of service of the motion (CRC Rule 3.1362, subd. (d)); and (3) all hearing dates scheduled in the action or proceeding, including the date of trial. (CRC Rule 3.1362, subd. (e).) “The proposed order relieving counsel must be prepared on the Order Granting Attorney’s Motion to Be Relieved as Counsel--Civil (form

MC-053) and must be lodged with the court with the moving papers.” (Ibid.)

The present motion pertains to attorneys Kristina Kourasis and Michelle N. Gubik, of the firm Landegger Verano ALC, counsel for Defendant HQ L.A., Inc. The motion includes a declaration of counsel, attesting to the Defendant’s failure to maintain communication with counsel and pay attorney fees. The motion includes a proof of service and a proposed order form describing upcoming hearing dates, including trial, which is now set for January 2028.

Defendant is a corporate entity. Corporate litigants cannot represent themselves in unlimited civil actions. (See CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1145.) “[T]he court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time.” (CLD Construction, Inc, supra, 120 Cal.App.4th at p. 1150.) Accordingly, concurrent with this order, the court sets an OSC re: Defendant’s retention of counsel in this action, with the warning that its failure to do so could result in the striking of its pleadings and the entry of its default. .

Kristina Kourasis and Michelle N. Gubik’s Motion to be Relieved as Counsel for Defendant HQ L.A., Inc. is GRANTED, effective upon moving counsel filing with the court proof of service of a copy of the signed order on the client, as set forth in Cal. Rules of Court Rule 3.1362(e). An OSC re: Defendant HQ L.A., Inc. retention of counsel is set for _____.

Dated: September 18, 2026

Hon. Richard S. Kemalyan

Judge of the Superior Court